R Andrew H. Cohen Esq.
217 Nassau St.
Venice Fl 34285

2013187486

Prepared by and return to:
Kelly M. Fernandez, Esq.
Hankin, Persson, McClenathen, Cohen & Darnell
1820 Ringling Blvd.
Sarasota, FL 34236

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RESOLUTION 2013-4

A RESOLUTION OF THE BOARD OF SUPERVISORS OF THE MEADOW POINTE II COMMUNITY DEVELOPMENT DISTRICT ADOPTING FINES FOR THE VIOLATION OF DEED RESTRICTIONS; PROVIDING FOR SEVERABILITY; PROVIDING FOR CONFLICTS; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the Meadow Pointe II Community Development District ("CDD") is authorized by Chapter 2004-417, Laws of Florida to enforce the deed restrictions of communities therein, except those which have mandatory homeowners' associations; and

WHEREAS, the Board of Supervisors of the CDD finds that it is in the best interests of the community to adopt fines for the violation of deed restrictions; and

WHEREAS, CDD staff has provided notice to the general public in accordance with Chapters 120 and 190, Florida Statutes, and scheduled a Public Hearing before the Board of Supervisors.

NOW THEREFORE BE IT RESOLVED BY THE BOARD OF SUPERVISORS OF THE MEADOW POINTE II COMMUNITY DEVELOPMENT DISTRICT:

SECTION 1. The above whereas clauses are true and correct and are hereby ratified and confirmed.

SECTION 2. In order to defray the costs of the CDD in inspection and enforcement, the following schedule of fines is adopted for any violation by the homeowner, guest, tenant or invitee of the deed restrictions of those communities within the CDD without a mandatory homeowners' association:

Restriction No.	Violation	Fine/day
2	Temporary structure, trailer, tent, shack, garage or other outbuilding	$50.00
6	Nuisances and unreasonable disturbances	$25.00
8	Animals	$25.00
9	Signs	$50.00
10	Garbage or trash containers	$25.00
11	Fences	$30.00
14	Lot maintenance (vegetation, debris, trash)	$25.00

17	Vehicles and parking	$50.00
18	Mailboxes	$25.00
19	Partially or totally destroyed buildings or improvements, overgrowth, rubbish, debris, partial construction of building or structure	$50.00
22	Architectural control violation	$100.00

A fine may be levied for each day of a continuing violation, with a single notice and opportunity to be heard, except that a fine may not exceed $1,000.00 in the aggregate. A fine may not be imposed without at least fourteen (14) days' notice to the person sought to be fined and an opportunity to be heard before a committee as set forth in Section 720.305(2), Florida Statutes. Written notice of any fine imposed by the committee must be provided by mail or hand delivery to the homeowner and, if applicable, to the guest, tenant or invitee. The person(s) fined may, within fourteen (14) days of the date of the written notice, request in writing that the Board of Supervisors waive or reduce the levied fine. The Board of Supervisors shall consider such request at its next regularly scheduled meeting.

SECTION 3. The fines adopted by this Resolution were adopted by the CDD after a duly noticed Public Hearing and shall be enforced in accordance with Section 720.305, Florida Statutes.

SECTION 4. This Resolution shall be recorded in the Public Records of Pasco County, Florida.

SECTION 5. If any section or part of a section of this Resolution be declared invalid or unconstitutional, the validity, force and effect of any other section or part of a section of this Resolution shall not thereby be affected or impaired unless it clearly appears that such other section or part of a section of this Resolution is wholly or necessarily dependent upon the section or part of a section so held to be invalid or unconstitutional.

SECTION 6. All resolutions or parts thereof in conflict herewith are, to the extent of such conflict, superseded and repealed.

SECTION 7. This Resolution shall become effective upon its adoption.

PASSED AND ADOPTED this 17th day of April, 2013.

ATTEST:

Andrew P. Mendenhall, PMP
Secretary

BOARD OF SUPERVISORS OF MEADOW POINTE II COMMUNITY DEVELOPMENT DISTRICT

Michael Cline
Chairman

SWORN TO AND ACKNOWLEDGED before me this 17 day of APRIL, 2013 by MICHAEL CLINE, who is personally known to me or produced _____ as identification.

(SEAL)

NOTARY
Printed Name: ANDREW P. MENDENHALL

My Commission Expires: 3/22/14

ANDREW P. MENDENHALL
MY COMMISSION # DD 973681
EXPIRES: March 22, 2014
Bonded Thru Notary Public Underwriters